

AFFIDAVIT FOR SEARCH WARRANT

- Page 1 of 3 Search Warrant No. 3212261 -

has been used or is possessed for the purpose of being used to commit or conceal the commission of an offense; or

is evidence of illegal conduct.

Affiant believes the property and evidence described above is evidence of the crime or crimes of 76-5-201 Criminal Homicide.

The facts to establish the grounds for issuance of a Search Warrant are:

OFFICER TRAINING AND EXPERIENCE

I am currently assigned to the Special Victims Unit for the Utah County Sheriff's Office. I have been through the POST training academy and have been trained and certified as a Utah Peace Officer since April 2015, starting with Lehi Police Department for 6 years which consisted of approximately 3 years on patrol with another approximately 2 and a half years in the special victim's unit. I then moved to work for the Utah County Sheriff's Office and in my first 3 years there, I was assigned to the law enforcement patrol unit. In my time on patrol, I have investigated a wide variety of cases including DUI's, drugs, domestic violence, thefts, frauds, assaults, sex offenses, crimes against children as well as undercover work within the special victim's unit and as part of the FBI Child Exploitation Task Force. During my time as a police officer, I have been trained and certified as a drug recognition expert and have done dozens of drug evaluations. I have had several DUI arrests both involving alcohol and drugs.

While working for Lehi Police Department in the special victim's unit I worked crimes against children with an emphasis in online sex crimes. I was a task force officer with the FBI Child Exploitation Task force and started working with them in February 2018 through the rest of my time with Lehi PD. During that time, I have worked and been part of hundreds of arrests for online crimes against children. I have also been the lead detective on several sex crimes, property crimes and all manner of crimes against people such as attempted homicide.

I am currently assigned to the Special Victims Unit (SVU) with the Utah County Sheriff's Office and am primarily assigned to work cybercrimes involving the sexual exploitation of minors. During my time as a sworn officer, I have investigated thousands of cases which have led to successful convictions in the court system. I have been trained as a forensic interviewer and have been to several interview and interrogation trainings and applied what has been taught in my investigations. As an SVU detective I have investigated several cases involving the sexual exploitation of children, online enticement of children and even homicide. In my current assignment I am investigating online crimes against children and based on my training and experience, I know that individuals who search for, download, and view child sex abuse imagery routinely accumulate, store, and conceal collections of sexually explicit depictions of children. I have also attended and completed the training at the ICAC bootstrap academy. I have since been approached by the FBI Child Exploitation Task Force and was reinstated as a Task Force officer with them. My experience in investigations has been refined and is continually improving as I further my career.

Based on my training and experience, I know that individuals who search for, download, and view child sex abuse imagery routinely accumulate, store, and conceal collections of sexually explicit depictions of children.

On 9/10/2025 Charles James Kirk was at the Utah Valley University campus for a political event. Charles was wearing a white tee-shirt and dark pants, sitting under a White canopy in a courtyard of the campus facing to the East. Charles was holding a microphone and speaking to a crowd. While speaking into the microphone, a loud gunshot was heard, and Charles appeared to have been hit in the neck. Blood was seen quickly coming out of the left side of his neck as he fell over to his left. Charles was transported to the Timpanogos Regional Hospital in Orem. Charles was pronounced deceased at the hospital. Access to his body and belongings is requested to obtain photographs of the injuries. Charles is a high profile political figure and threats are a common occurrence, therefore permission is also requested to seize and forensically analyze any electronic device belonging to Charles as well as any on his body or with his property that would have been transported with him to the hospital to analyze for threats or other relevant information that would lead to the suspect identity. Search warrant is requested to prevent the loss of evidence that may be contained on his body or his electronic devices.

WHEREFORE, your affiant prays that a Search Warrant be issued for the seizure of said items in the daytime.

APPLICATION TO SEAL SEARCH WARRANT AND RELATED DOCUMENTS:

Your Affiant requests, pursuant to Utah Rule of Crim. P. 40(m) that the search warrant, application, and affidavit or other recorded testimony upon which the warrant is based, to include this application for an order sealing such documents, be SEALED until 03/10/2026 for the following reasons:

- pose a serious impediment to the investigation;

At this time the suspect who is involved in this case is not in custody. Should information contained in this Affidavit become public, it may pose a serious impediment to the investigation.

I declare under criminal penalty of the State of Utah that the foregoing is true and correct.

Executed on: 10th day of September, 2025 @ 03:16 PM by /s/ MICHAEL GEORGE CARLE

IN THE FOURTH DISTRICT COURT - ALL DEPARTMENT
IN AND FOR UTAH COUNTY, STATE OF UTAH

SEARCH WARRANT

No. 3212261

COUNTY OF UTAH, STATE OF UTAH

To any peace officer in the State of Utah:

Proof by Affidavit made upon oath or written affirmation subscribed under criminal penalty of the State of Utah having been made to me by Detective MICHAEL GEORGE CARLE of Utah County Sheriff's Office, this day, I am satisfied that there is probable cause to believe

THAT

On the premises known as Timpanogos Regional Hospital 750 W 800 N, Orem, UT 84057, further described as Timpanogos Regional Hospital room where Charlie Kirks body is located.;

On the person(s) described as:

Charles James Kirk, DOB 10/14/1993

On the item(s) described as:

Any and all electronics belonging to Charles James Kirk or belongings on his person that went with him to the hospital. Photographs of the body of Charles James Kirk.

In the City of Orem, County of Utah, State of Utah, there is now certain property or evidence described as:

Search warrant is requested to grant access to the deceased body of Charles James Kirk and includes a search of his person and belongings that went with him to the hospital. Search warrant grants access to photograph the body of Charles Kirk and any belongings on his person or that he arrived with at the hospital.

and that said property or evidence:

Was unlawfully acquired or is unlawfully possessed;

has been used or is possessed for the purpose of being used to commit or conceal the commission of an offense; or

is evidence of illegal conduct.

Affiant believes the property and evidence described above is evidence of the crime or crimes of 76-5-201 Criminal Homicide.

YOU ARE THEREFORE COMMANDED:

to make a search in the daytime of the above-named or described person, vehicle, item, and/or premises for the herein-above described property or evidence and if you find the same or any part thereof, retain such property in your custody subject to the direction of a prosecutor or an order of this Court.

ORDER TO SEAL

Based upon the Application to Seal in the accompanying Affidavit in Support of Search Warrant, IT IS HERBY ORDERED that that the search warrant, application, and affidavit or other recorded testimony upon which this search warrant is based, to include the application for an order sealing such documents, is SEALED until 03/10/2026.

Dated: 10th day of September, 2025 @ 03:17 PM /s/

BARBARA FINLINSON
Justice Court Judge



RETURN TO SEARCH WARRANT

NO. 3212261

The personal property listed below or set out on the inventory attached hereto was taken from the person of Charles James Kirk, DOB 10/14/1993, by virtue of a search warrant dated the 10th day of September, 2025, and issued by Magistrate BARBARA FINLINSON of the FOURTH DISTRICT COURT - ALL DEPARTMENT:

Photographs of the body of Charles Kirk and any belongings on his person or that he arrived with at the hospital.

I, Detective MICHAEL GEORGE CARLE of Utah County Sheriff's Office, by whom this warrant was executed, do swear that the above listed or below attached inventory contains a true and detailed account of all the property taken by me under the warrant, on the 10th day of September, 2025.

All of the property taken by virtue of said warrant will be retained in my custody subject to the order of this Court or of any other court in which the offense in respect to which the property, or things taken, is triable.

I declare under criminal penalty of the State of Utah that the foregoing is true and correct.

Executed on: 23rd day of September, 2025 @ 01:04 PM by /s/ MICHAEL GEORGE CARLE